FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF NEW YORK

BD Palisades Holdings, LLC,

Plaintiff,

-against-

EklecCo NewCo LLC, Queens Comic's NewCo LLC, Riesling Associates, Three J's Family Trust, CS Hudson, Inc., New York State Department of Taxation and Finance,

Defendant.

Index No. 850051/2023

MORTGAGED PROPERTY:

105 North Route 303, West Nyack, NY 10994

a/k/a 1000 Palisades Center Dr., West Nyack, NY 10994

COUNTY: Rockland

SBL #: See attachment

Sale Date: FEBRUARY 4, 2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 463,395,241.72
2. Adjusted Judgment Amount (Upset Price): $ N/A
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 175,000,000.00
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ -0-
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 4,950

Referee Name: Clark A. Whitsett, Esq. Telephone: (718) 850-0003

Address: 65-05 Woodhaven Boulevard, Rego Park, NY 11374

Email: clark@whitsettlaw.com Signature/Date: Clark Whitsett 2/4/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Mark Lichtenstein, Esq. c/o Akerman LLP

Address: 1251 Avenue of the Americas
37th Floor, New York, NY 10020

Telephone: (212) 880-3800

Email: mark.lichtenstein@akerman.com

Signature/Date: Mark Lichtenstein, 2/4/26

C. To Be Completed by Purchaser

Name: Plaintiff

Address: N/A

Telephone:

Email:

Signature/ Date: 2/4/26

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19

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